

MUTUAL NON-DISCLOSURE AGREEMENT (TEMPLATE)

DRAFT FOR DISCUSSION — NOT LEGAL ADVICE — REVIEW WITH KENYAN ADVOCATE

THIS MUTUAL NON-DISCLOSURE AGREEMENT ("Agreement") is entered into on [DATE]

BETWEEN:

(1) [COMPANY LEGAL NAME], of [REGISTERED ADDRESS] ("Party A"); and

(2) [COUNTERPARTY LEGAL NAME], of [COUNTERPARTY ADDRESS] ("Party B")

(each a "Party" and together the "Parties")

1. PURPOSE

The Parties wish to explore a potential **investment, partnership, pilot, or commercial relationship** relating to **KOVA** (Kova Agent) and may disclose confidential information to each other.

2. DEFINITION OF CONFIDENTIAL INFORMATION

2.1 "**Confidential Information**" means all non-public information disclosed by either Party, whether oral, written, or electronic, including:

- (a) Business plans, financial models, cap tables, fundraising terms;
- (b) Product architecture, source code, roadmaps, security practices;
- (c) Customer lists, pilot data, pricing (including Plan v2 tiers), and metrics;
- (d) AI prompts, agent logic, and operational procedures;
- (e) Any information marked "Confidential" or reasonably understood to be confidential.

2.2 Exclusions: information that (i) is public without breach; (ii) was known prior to disclosure; (iii) is independently developed; or (iv) is received from a third party without restriction.

3. OBLIGATIONS

3.1 Each Party shall:

- (a) Use Confidential Information **only for the Purpose**;
- (b) Protect it with **at least the same care** as its own confidential data (minimum reasonable care);
- (c) Limit access to **need-to-know** directors, employees, advisers bound by confidentiality;
- (d) Not disclose to third parties without prior written consent.

3.2 **Permitted disclosures:** legal compulsion (with prompt notice to the other Party where lawful), professional advisers under confidentiality, affiliates bound by equivalent terms.

3.3 **No obligation to proceed** with any transaction.

4. **TERM**

4.1 This Agreement commences on the Effective Date and continues for **two (2) years**.

4.2 Confidentiality obligations survive for **three (3) years** after termination (trade secrets indefinitely).

5. **RETURN AND DESTRUCTION**

5.1 Upon written request, each Party shall return or destroy Confidential Information within **fourteen (14) days**, except one archival copy for legal compliance.

6. **NO LICENSE OR WARRANTY**

6.1 No licence to intellectual property is granted except as necessary to evaluate the Purpose.

6.2 Confidential Information is provided "**as is**" without warranty.

7. **REMEDIES**

7.1 Each Party acknowledges that breach may cause irreparable harm and that injunctive relief may be sought in addition to damages.

8. **GOVERNING LAW AND DISPUTES**

8.1 **Governing law:** Laws of [JURISDICTION: Kenya].

8.2 **Jurisdiction:** Courts of [Nairobi, Kenya] / [arbitration — TBD per counsel].

9. **GENERAL**

9.1 Entire agreement on confidentiality for the Purpose.

9.2 Amendments in writing signed by both Parties.

9.3 No assignment without consent (except to affiliates or acquirers).

9.4 Notices: [EMAIL A] and [EMAIL B].

SIGNATURES

PARTY A — [COMPANY LEGAL NAME]

Signature: _____

Name: **[SIGNATORY NAME]**

Title: **[TITLE]**

Date: **[DATE]**

PARTY B — [COUNTERPARTY LEGAL NAME]

Signature: _____

Name: **[SIGNATORY NAME]**

Title: **[TITLE]**

Date: **[DATE]**

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